

25STCV11413 25STCV11413

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Case Number: 25STCV11413 Hearing Date: August 7, 2026 Dept: 414

25STCV11413

Ofelia Britt v. Nissan North America, Inc.

Friday, August

7, 2026

[TENTATIVE] ORDER GRANTING PLAINTIFF'S MOTION TO COMPEL INITIAL
DISCLOSURES AND REQUEST FOR MONETARY SANCTIONS PURSUANT TO CALIFORNIA CODE OF
CIVIL PROCEDURE § 871.26 (7324)

I.

BACKGROUND

This

action arises from alleged violations of the Song Beverly Consumer Warranty Act
in connection with a warranty contract issued by Defendant manufacturer for a 2021
Nissan Sentra.

Plaintiff

argues Defendant failed to disclose initial documents as required by statute
which were due on October 12, 2025. Plaintiff asks for an order compelling
Defendant's production of documents and issuing mandatory sanctions of \$2,500
against Defendant, Nissan North America, Inc.

As

of August 5, 2026, Plaintiff did not file a reply brief.

II.

LEGAL STANDARDS

The

statute at issue, which became effective January 1, 2025, and applies to this case, requires both parties to disclose documents 60 days after the answer or responsive pleading. (Code Civ. Proc., § 871.26(b); (h)(1). Plaintiff met and conferred by email, however, Defendant did not comply. (Hill decl., Ex. 1.)

The

court “shall impose” sanctions of \$2,500 against the Defendant’s attorney to be paid within 15 business days for failure to comply with the document production requirements unless good cause is shown. (Code Civ. Proc., § 871.26 (j)(1).)

III.

DISCUSSION

Defendant

states that the disclosure was due October 13, 2025, however, contends the parties agreed to suspend their mutual obligations temporarily while the parties pursued informal resolution of this action.

Following

receipt of this motion, Defendant prepared and served initial disclosures and document production on June 23, 2026. Defendant contends there is nothing for the Court to compel. Defendant asserts that Plaintiff improperly expands the scope of documents required to be produced.

There

is no record of an agreement to suspend disclosures. Defendant refers to an email exchange which does not document an agreement to pause disclosure obligations. (Hill decl., Ex. 1.) Rather, Plaintiff’s counsel informed Defendant that initial disclosures were past due in 463 cases. (Id.) Moreover, nothing in the statute permits the parties to avoid their mandatory obligations by stipulation.

Defendant

has not shown good cause for the delay. Defendant has since complied with its obligations. (Sweeney decl., Ex. A, B.). Defendant contends that the disclosure requirement is not mandatory because there is an exception: “unless the party

failing to comply shows good cause.” (Opp.

8:1-4; Cal. Code Civ. Procedure §871.26 (j).) Defendant has not shown good cause. Additionally, imposition of sanctions is mandatory regardless of whether Defendant was acting in good faith.

IV.

CONCLUSION

As

Defendant has since untimely served its initial disclosures of documents, an order compelling their production is no longer necessary. However, the court imposes sanctions of \$2,500 against Defendant’s attorney payable to Plaintiff within 15 business days. (Cal. Code Civ. Procedure § 871.26(j)(1).)